REENA NARENDRA GOVAN (nee GOPAL)
versus
DHIREN SHANTILAL GOVAN

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE;24 November 2025 and 18 March 2026

Leave to Amend Plea and Counterclaim

F. Mahere, for the Applicant
E. Mubaiwa for the Respondent

MAXWELL J: Respondent issued summons under reference HCH 2292/23 claiming a decree of divorce and ancillary relief. The Applicant filed a plea and counter-claim thereof. She is now approaching the court in terms of Rule 41(4) of this court's 2021 rules after the Respondent indicated that he was opposed to the amendment.

Applicant stated in the Founding Affidavit that after she received the summons in HCH 2292/23. She sought instructions on whether she had any right to reside in a flat owned by the Respondent, that is, Flat 3 Rosefriars Lonsdale Road, Harare. She indicated that she was advised that she had to claim usufruct rights. She therefore gave instructions for a plea and counterclaim to be filed claiming usufruct rights over the property. She subsequently abandoned the usufruct claim after Respondent claimed that the property did not belong to him.

At Pre-Trial-Conference Stage Applicant's erstwhile Legal Practitioners renounced agency. A new law firm assumed agency. An interim consent paper was filed. Applicant submitted that the consent paper is subject to litigation to have it set aside as she did not consent to it. Again there was renunciation and assumption of agency as Applicant reverted to her initial Legal Practitioners. On further consultation Applicant was advised that she is entitled to claim a share of the Respondent's beneficial interest in his assets and those of his company under s7(1) of the Matrimonial Causes Act [*Chapter 5:13*]. She was then advised to amend her plea and counterclaim to that effect.

Applicant submitted that the amendment sought will not occasion any prejudice to the Respondent.

The proposed amendments are couched as follows:

1. "Ad plea paragraph 6
That this paragraph be detected in its entirety and substituted with
"This is denied. The Defendant avers that the Plaintiff has a beneficial interest in the following immovable properties.
The matrimonial home being 151 Crescent Lane Karoi and Flat 3 Rosefriars, Lansdale Road, Harare.
The Defendant avers that the Plaintiff is a shareholder in the company Shoes and Sport (Pvt) Ltd.
Defendant avers that she is entitled to a 50% share in the Plaintiff's interests in the aforesaid assets."

2. Ad Defendant's counterclaim
By detection of para 11 in its entirety and substitution with:
"Defendant is hereby claiming in terms of s 7(1)(a) of the Matrimonial Causes Act [*Chapter 5:13*]
a 50% share in the following assets which Plaintiff is the beneficial owner thereof,
a 50% share of Flat 3 Rosefriars, Lonsdale Road, Harare.
a 50% share in 151 Crescent Lane, Karoi.
a 50% share in the Company shoes and Sport (Pvt) Ltd."

Respondent filed an objection to the amendments. He stated that the amendment sought seeks to revisit already settled matters. Further that the amendments sought are *mala fide* as they upset the issues for trial already settled at a PTC before a Judge in 2023 and in the Consent Paper of 22 November 2024. He submitted that he will be prejudiced immensely as he will be required to also seek leave to amend his pleadings. He further submitted that Applicant had since May 2023 to introduce new issues and the amendments sought are dilatory and an abuse of court process.

In his opposing Affidavit, Respondent raised a preliminary point that the application was incompetent and could not be decided prior to the determination of the matter under HCHF 223/25 in which an order for the discharge of the Consent Paper was sought. On the merits he pointed out that Applicant abandoned the usufruct claim pursuant to conducting a deeds search. Further that Applicant is in the habit of blaming her erstwhile legal practitioners whenever she wishes to change goal posts. He submitted that the issue pertaining to Flat 3 Rosefriars Lonsdale Road, Harare was settled whilst Applicant was represented by her legal practitioners. Respondent pointed out that the introduction of the new matters at trial stage would require that he amends his replication and plea to counterclaim returning the matter to pre-trial-stage, and that the amendment will also occasion the discovery of new documents. He prayed that in the event that the application is granted. Applicant be ordered to pay costs on a Legal Practitioner and client scale.

In her answering affidavit, Applicant stated that she abandoned the claim for usufruct rights over the property but has been advised that she is entitled to a share of Defendant's beneficial interests. She submitted that there is no prejudice to the Defendant as the matter is yet to be determined at trial. She submitted that Respondent is not entitled to an order of costs.

In heads of argument, Applicant referred to the case of *Wayne Parham and Cresfin* (*Pvt) Ltd* v *Jan Fredrick Kolze* HH 312/18 in which it was held that:

> "Amendments can be made before close of pleadings, during the hearing of evidence, after the hearing of evidence, but not after judgment. See Herbstei & Van Winsen The Civil Practice of the High Courts of South Africa 5th edition Volume 1 p675. The main aim and object in allowing an amendment to pleadings is to do justice to the parties by deciding the real issues between them."

Both parties are agreed on the issues to be considered by the court in deciding whether to grant amendment of pleadings. They both cited the case of *UDC Ltd* v *Shamva Flora* (*Pvt*) Ltd 2000 (2) ZLR 210 in which the following considerations were laid out as being key in determining whether or not to grant the proposed amendment,

a) It must not cause prejudice to the other side which cannot be compensated by costs,
b) An amendment cannot be granted for the mere asking, some explanation must be offered therefor,
c) The applicant must show that *prima facie* the amendment has something deserving of consideration, a triable issue,
d) The party seeking the amendment must not be *mala fide*, and
e) The proposed amendment must have prospect of success.

See also *Harunavamwe* v *Mukata* HH 552/22.

Rule 41 (10) of the High Court Rules 2021 provides as follows:

> "The Court or a Judge may, notwithstanding anything to the contrary in this rule, at any stage of the proceedings before judgment, allow either party to alter or amend any pleading or document, in such manner and on such terms as may be necessary for the purpose of determining the real question in controversy between the parties".
> (Underlining for emphasis)

It is common cause that the application was made before the trial commenced and therefore before the judgment. It is therefore within the period allowed in Rule 41(10) of the High Court Rules 2021. The question is whether after the key considerations are taken into account, the court's discretion should be exercised in favour of the applicant. Respondent argued that the amendment is prejudicial as it introduces a new cause of action. I do not agree. Reference was made to a number of cases which emphasise that the court has no

power to allow an amendment that has the effect of introducing a new cause of action. I took note of the fact that none of the causes cited by the Respondent deal with divorce and ancillary relief. The sharing of property is ancillary to a claim for a decree of divorce.

In *Lourenco* v *Raja Dry Cleaners and Steam Laundry (Pvt) Ltd* 1984 (2) ZLR 151 at 159 E-F it is stated:

> "The main aim and object in allowing an amendment to pleadings is to do justice to the parties by deciding the real issues between them. The mistake or neglect of one of the parties in the process of placing issues before the court and on record will not stand in the way of this unless the prejudice caused to the other party cannot be compensated for in an award of costs. The position is that even where a litigant has delayed in bringing forward his amendment as in this case, this delay in itself, in the absence of prejudice to his opponent which is not remediable by payment of costs does not justify refusing the amendment."

The real issue between the parties include the sharing of assets. What was done or omitted to be done at the time Applicant filed her pleadings in the divorce matter are issues to be considered when determining whether to award costs or not. Even if new issues are raised in the proposed amendment, the Respondent will have an opportunity of amending his pleadings to respond to the issues raised. I am not persuaded that the prejudice cannot be remedied by an issue of costs.

The proposed amendment and the Respondent's response clearly show the existence of a triable issue. Applicant is claiming a share of property which Respondent claim do not belong to him. The ownership or otherwise of the claimed properties or shares therein is a triable issue. Respondent claimed that the proposed amendment is *mala fide* because it is being made in the later stages of the matter. I am not persuaded that the stage at which the matter is when application for amendment of pleadings is made demonstrates *mala fides*. This is because as stated above, Rule 41(10) of the High Court Rules of 2021 authourises the court or a Judge to allow any party to amend or alter any pleading or document at any stage of the proceedings before judgment.

On the prospects of success, Respondent argued that the properties in the proposed amendment do not belong to him. As stated above, this is a triable issue. Moreover s7 of the Matrimonial Causes Act [*Chapter 5:13*] allows the court to issue an order for the transfer of property in the hands of a third party. Whether such an order is necessary is for the trial court. It is premature to make a finding that there are no prospect of success.

On the issue of costs, I am not persuaded that costs on a higher scale are warranted. Ordinary costs meet the justice of the case.

On the 6th of March 2026, Respondent's Legal Practitioners brought to my attention judgment of the Supreme Court in a matter between the parties, SC 21/26. The Supreme Court stated the only issues for trial as per the papers that were filed of record. The question of whether or not the pleadings before the court could be amended was not before the Supreme Court. The judgment of the Supreme Court in SC 21/26 therefore does not affect the outcome of this application.

The application succeeds. The following order is made;

1. Leave to amend the plea and counterclaim in HCH 2292/23 be and is hereby granted.
2. The Applicant be and is hereby granted leave to amend her plea and counterclaim in accordance with the notice of amendment filed on the 26th of February 2025.
3. The applicant shall pay costs on an ordinary scale.

MAXWELL J.....

Messrs Vernturas & Samukange, Applicant's Legal Practitioners.
Messrs Chimuka Mafunga Commercial Attorneys, first Respondent's Legal Practitioners